

**IN THE DISTRICT COURT IN AND FOR BRYANT COUNTY
STATE OF OKLAHOMA**

STATE OF OKLAHOMA,
Plaintiff,

vs.

XIAOHONG XU,
Defendant.

CASE NO. CM-2017-252

FILED
BRYAN COUNTY, OKLAHOMA
DISTRICT COURT CLERK

OCT 19 2017

DONNA ALEXANDER
COURT CLERK
BY *Shelley* Deputy

REQUEST AND MOTION FOR DISCOVERY

COMES NOW Defendant, Xiaohong Xu, by and through his Attorney, Myong O. Chung, and hereby respectfully request the State to voluntarily disclose the matters listed below, and she also moves the court, in accordance with her rights of due process, confrontation, and effective assistance of counsel under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution and Article II, §§17, 18, 19, 20, 21, and 30 of the Oklahoma Statutes, to order the disclosure, in writing and allow the Defendant to inspect, copy, photograph and have reasonable tests made of the following relevant materials which are material to the preparation of the Defendant's defense and are within the possession, custody, control or knowledge of the State and/or its agents, or are obtainable through reasonable diligence.

By reference to the State of Oklahoma herein, this Motion seeks the production of material not only held in the hands of the District Attorney, but also that held by the Oklahoma State bureau of Investigation and/or its agents, the Bryant County Sheriff's Office, and the Durant Police Department and any other office, department or division of the State of Oklahoma. Federal Bureau of Investigation materials are also requested where relevant.

As part of this Motion, the Defendant prays that the Court, in sustaining the Motion, enter the following appropriate orders to secure compliance: (1) The Court fix a date, time and place by which the State must comply with the Orders; (2) That the notice of compliance and the method of compliance be reduced to writing, filed and made a part of the records herein, and a copy served upon counsel for the defense; (3) Make its Order

continuing so that if additional information comes to the attention of the State, its employees or agents, the State must make a prompt and timely disclosure, in writing, to the Defendant; (4) make it clear to the prosecution that it has the duty and responsibility to make a thorough and diligent inquiry of all appropriate State agencies to ensure compliance with the Orders entered herein.

DISCOVERY ITEMS REQUESTED

1. **EXCULPATORY EVIDENCE:** The Defendant requests the State to produce all evidence which is material either to the issue of his guilt or innocence or which is material to the issue of his punishment:

A. **IMPEACHMENT MATERIAL.** The Defendant requests the State to produce all information which may impeach any of the State's witnesses or the State's theory of this case.

B. **EVIDENCE HELPFUL TO THE DEFENSE.** The Defendant requests the State to reveal to the defense all information which may be helpful in the preparation and presentation of her defense.

C. **NAMES AND ADDRESSES OF PERSONS WITH POSSIBLE FAVORABLE TESTIMONY.** The Defendant requests the State to reveal the names and addresses of all persons with possible favorable testimony for the defense immediately in order to protect the Defendant's right to interview witnesses prior to trial.

D. **PROMISES TO WITNESSES.** The Defendant requests the State to inform her of all promises which may have been made all witnesses in exchange for the witnesses' statements or potential testimony. This request includes a request for threats of prosecution as well as promises of leniency or a harsh sentence for Defendant. This request extends not only to such promises and threats made by the District Attorney's office, but by any other person who the State is aware has spoken with the witness.

E. **INCONSISTENT STATEMENTS.** The Defendant requests the State to reveal to her any statements of witnesses made which are either inconsistent with subsequent statements of that witness or which are inconsistent with other evidence obtained by the State in relationship to this case, to include statements in court, to police officers, to sheriff officials or elsewhere.

F. WITNESSES PRIOR CONDUCT. The Defendant request the State to reveal any evidence of their witnesses' bad acts, misconduct, etc., which may reflect on the witnesses' credibility or vulnerability to prosecution, including prior perjurious statements or involvement in other crimes or bad acts.

G. LEADS. The Defendant requests the State to reveal any physical evidence, information, statements or notes which may lead to evidence which is exculpatory.

2. DEFENDANT'S STATEMENTS. The Defendant requests the State to reveal the substance of any oral statements made by her, a copy of any written statements, a copy of any reports summarizing any statements or any tape recordings of any such statements. The Defendant has allegedly made statements to the Durant City Police's Office including request for and references to an attorney. She requests to be informed of all statements made by her.

3. WAIVER OF DEFENDANT. The Defendant requests the State to reveal any and all waivers of constitutional rights executed by the Defendant, including but not limited to any "Miranda Card" waivers which Defendant allegedly signed, and the time lapse between the request for her attorney and the signing of the card.

4. SEARCH WARRANTS. The Defendant requests a copy of any search warrants, all applications, affidavits and returns of search warrants relating to the investigation or prosecution of this case. Additionally, the Defendant requests to be provided with a copy of all search warrant waivers signed in relationship to this case.

5. DEFENDANT'S CRIMINAL RECORD. The Defendant requests copies of her prior criminal record, if any, which is in the possession, custody or control of the State or any agency to which the State has reasonable access, either State or Federal, through which to obtain said record.

6. WITNESSES CRIMINAL RECORDS. The Defendant requests pre-trial inspection of the criminal record of all prosecuting witnesses.

7. EXAMINATION OF DEFENDANT. The Defendant requests copies of any records or reports of physical or mental examinations of the Defendant which are in the possession or control of the State and/or which is known or by the exercise of due diligence, can become known, to the State.

8. **WITNESSES STATEMENTS.** The Defendant requests copies of all witnesses' statements given to the State and/or any of its agents, in relationship to this case.

9. **WITNESS LIST.** The Defendant requests the State to furnish her with a list of witnesses and their addresses whom the State will call at trial.

10. **EXHIBITS, SCIENTIFIC AND TECHNICAL REPORTS.** The Defendant requests the State to allow her to inspect the State's exhibits and technical and scientific reports upon which it will rely for conviction. The Defendant also requests copies of such exhibits and reports where feasible, to be provided at her expense.

11. **SEIZED ITEMS.** The Defendant requests all objects, documents, books, papers, clothing, etc. from or belonging to the and/or obtained from others involved in this case by seizure or by the process of voluntary relinquishment and to subject such items to inspection by defense counsel.

12. **ELECTRONIC RECORDINGS OR EAVESDROPPING.** The Defendant requests to be informed of all electronic recordings or eavesdropping conducted pursuant to the investigation of this case.

13. **PHOTOGRAPHS AND DRAWINGS.** The Defendant requests all photographs taken by agents of the plaintiff pertaining to this case and requests permission to inspect and copy at her expense such photographs.

14. **LAW ENFORCEMENT REPORTS.** The Defendant requests all law enforcement reports, arrest reports, incident reports, and law enforcement notes pertaining to this case which are exculpatory.

16. **FINGERPRINT INFORMATION.** The Defendant requests all reports with respect to any fingerprints lifted at or near the scene of the alleged incident and to inspect and examine these fingerprints with a list of the names and addresses of those persons whose fingerprints were matched with those listed. Additionally, the Defendant requests copies of the fingerprints taken to be made available for her, at her expense, in order that she may have an expert examine these fingerprints.

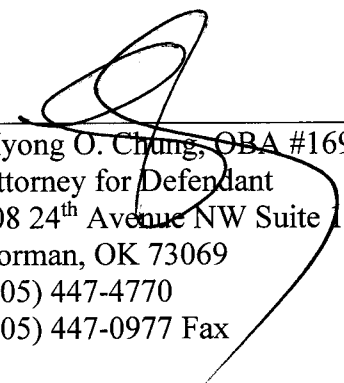
17. **PRESS RELEASE INFORMATION.** In the event the State and/or any of its agents have release information to the press concerning this incident, defense

counsel requests to be informed of the information, pictures, etc., released, and distribution list of to whom such information was revealed.

18. **DISCOVERY DEPOSITIONS.** The Defendant further requests the right to depose any and all witnesses or potential witnesses or those that may have or lead to material evidence in this case all at state expense.

The Defendant respectfully informs the court that this Motion for Discovery and Inspection is made in good faith, and based largely upon the ground that the above information is exclusively within the possession of the State. Further, the Defendant represents to this court that all of this material requested would be essential and helpful to the preparation of her defense. Further, the discovery requested herein is not made for the purpose of delay and poses no undue burden on the prosecution.

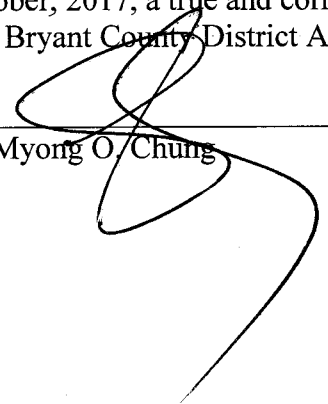
Respectfully submitted this 11 day of October, 2017.



Myong O. Chung, OBA #16999
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CERTIFICATE OF MAILING

I hereby certify that on this 11 day of October, 2017, a true and correct copy of the foregoing instrument was mailed/faxed to the Bryant County District Attorney's Office.



Myong O. Chung